

Stereo. HC JD A 38.
Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT

Criminal Appeal No. 571 of 2024
(Muhammad Tanveer Tannu Vs. The State, etc.)

J U D G M E N T

Date of hearing:	26.06.2025.
Appellant by:	Mr. Mudassar Altaf Qureshi, Advocate.
State by:	Malik Riaz Ahmad Saghla, Additional Prosecutor General.

TANVEER AHMAD SHEIKH, J: - The appellant namely Muhammad Tanveer alias Tanu son of Umar Din was tried by the learned Additional Sessions Judge, Mailsi, in case F.I.R. No.417 of 2023, dated 24.08.2023, registered at the Police Station Saddar, Mailsi, District Vehari, in respect of an offence under Section 9(1), entry No. 3 of Column No.(1), entry (c) of Column No. (2) read with Column No. (3) of the TABLE given under section 9(1) of the Control of Narcotic Substances Act, 1997 as amended by the Control of Narcotic Substances (Amendment) Act, 2022. The learned trial court *vide* judgment dated 14.06.2024 convicted the appellant namely Muhammad Tanveer alias Tanu son of Umar Din and sentenced him as infra:

Muhammad Tanveer alias Tanu son of Umar Din:-

Rigorous Imprisonment of nine years under section 9(1), entry No. 3 of Column No.(1), entry (c) of Column No. (2) read with Column No. (3) of the TABLE given under section 9(1) of the Control of Narcotic Substances Act, 1997 as amended by the Control of Narcotic Substances (Amendment) Act, 2022 and ordered to pay fine of Rs.1,00,000/- and in default thereof to further undergo simple imprisonment for a period of six months.

The appellant was extended the benefit provided under section 382-B of the Code of Criminal Procedure, 1898.

2. Feeling aggrieved, Muhammad Tanveer alias Tanu son of Umar Din (convict) lodged the instant Criminal appeal No.571 of 2024 assailing his conviction and sentence.

3. Precisely, the necessary facts of the prosecution case as stated by the prosecution witnesses are that on 24.08.2023, the appellant namely Muhammad Tanveer alias Tanu son of Umar Din was apprehended and 1700 grams of “Charas” (P-1 & P-2) was recovered from his possession which was taken into possession through recovery memo (Exh.PA).

4. On the above stated facts F.I.R. No.417 of 2023 (Exh.PC), dated 24.08.2023, was registered at Police Station Saddar, Mailsi, District Vehari, in respect of an offence under Section 9(1), entry No. 3 of Column No.(1), entry (c) of Column No. (2) read with Column No. (3) of the TABLE given under section 9(1) of the Control of Narcotic Substances Act, 1997 as amended by the Control of Narcotic Substances (Amendment) Act 2022.

5. After the formal investigation of the case, report under section 173 of the Code of Criminal Procedure, 1898 was submitted before the learned trial court and the appellant was sent to face trial. The learned trial court framed the charge against the accused on 15.11.2023 under section 9(1), entry No. 3 of Column No.(1), entry (c) of Column No. (2) read with Column No. (3) of the TABLE given under section 9(1) of the Control of Narcotic Substances Act, 1997 as amended by the Control of Narcotic Substances (Amendment) Act, 2022. The appellant pleaded not guilty and claimed trial.

6. In order to prove the facts in issue the prosecution got as many as **six** witnesses examined in total. Muhammad Sajid Rahim, Sub-Inspector (PW-5), the complainant of the case, Javed Iqbal 135/C (PW-4) and Ghulam Haider 1413/C (PW-2) narrated the facts leading to the recovery of 1700 grams of “Charas” (P-1 & P-2) and made a detailed statement before the learned trial court. Muhammad Mukhtiar 1253/HC (PW-6) stated that on 24.08.2023, Bashir Ahmad, Sub-Inspector (PW-1), the Investigating Officer of the case, handed over to him four sealed parcels, i.e. two sealed parcels, said to contain the samples, drawn and separated from the recovered “Charas” and two sealed parcels, said to contain the remaining recovered “Charas” and on 21.09.2023, he handed over the two sealed parcels, said to contain the samples, drawn and separated from the recovered “Charas” to Bashir Ahmad, Sub-Inspector (PW-1) for its onward transmission to the office of the Punjab Forensic Science Agency. Bashir Ahmad, Sub-Inspector/Incharge NIU (PW-1) investigated the case from 24.08.2023 till the preparation of the report under section 173 of the Code of Criminal Procedure, 1898 and detailed the facts of his investigation in his statement before the learned trial court.

7. On 12.06.2024, the learned Assistant District Public Prosecutor closed the prosecution evidence after tendering in evidence the report of the Punjab Forensic Science Agency (Exh.PE).

8. After closing of prosecution evidence, the statement of the appellant was recorded under section 342 of Code of Criminal Procedure, 1898, and the appellant pleaded his innocence and in reply to as to *why the PWs had deposed against him*, he stated that a false and baseless case has

been registered against him and the witnesses being police officials deposed falsely against him just to strengthen the prosecution being subordinate of the complainant of the case. The appellant opted not to appear in terms of section 340(2) of the Code of Criminal Procedure, 1898, and did not adduce any evidence in his defence.

9. After completion of evidence and hearing both the parties, the learned trial court held the appellant guilty of the offence and sentenced the appellant as referred to above.

10. The learned counsel for the appellant argued that the appellant was innocent and he had been falsely implicated in the instant case. The learned counsel contended that the sealed parcels, said to contain the samples, drawn and separated from the recovered narcotic substance, were deposited in the office of the Punjab Forensic Science Agency with the delay of 27/28 days. The learned counsel argued that all the witnesses in this case were from the police and the prosecution had not produced even a single independent/private witness who could corroborate their testimony. The learned counsel contended that the report of the Punjab Forensic Science Agency had no legal value and could not be read against the appellant. Lastly, the learned counsel argued that the prosecution evidence was discrepant and incoherent. The learned counsel for the appellant contended that there was at least one contradiction in the testimony of the prosecution witnesses that spoiled it altogether and made it untrustworthy.

11. On the other hand, the learned Additional Prosecutor General appearing on behalf of the State submitted that the prosecution has proved the charge by producing admissible and relevant evidence. He further

submitted that the appellant himself got the contraband recovered. He contended that the appellant had failed to prove the motive for the false implication that he had pleaded in his defence. The learned Additional Prosecutor General further submitted that all the witnesses have corroborated each other. He requested that the appeal be dismissed.

12. We have heard the learned counsel for the appellant as well as the learned Deputy District Public Prosecutor and perused the record.

13. After perusal of the statements of the witnesses, produced by the prosecution during the course of the trial, we have come to the irresistible conclusion that the safe custody of the recovered narcotic substance could not be proved beyond a shadow of doubt. In this regard, we have noticed that according to the statements of the prosecution witnesses, the recovered narcotic substance was in the shape of two pieces and samples from each of the two pieces were drawn, separated and secured by way of two separate sealed parcels on 24.08.2023 and on the same day Bashir Ahmad, S.I. (PW-1) deposited the said two sealed parcels, said to contain the samples, drawn and separated from the recovered pieces of Charas, in the Police Station, however, after their deposit in the Police Station on 24.08.2023, the said two sealed parcels, said to contain the samples, drawn and separated from the recovered two pieces of the narcotic substance, were handed over to Bashir Ahmad, Sub-Inspector (PW-1) by Muhammad Mukhtiar 1253/HC (PW-6) on 21.09.2023. No explanation for said delay in handing over the sealed parcels, said to contain the samples, drawn and separated from the recovered pieces of Charas, much less plausible, has been furnished by the prosecution. Such an inordinate delay in handing over the sealed parcels of the samples,

drawn and separated from the two pieces of Charas to the Punjab Forensic Science Agency inevitably casts a deep shadow of doubt on the integrity and the authenticity of the safe custody of the said parcels and then makes the report of the Punjab Forensic Science Agency highly doubtful, as under the law it is necessary that the said report of Punjab Forensic Science Agency not only be produced before the learned trial court but also be duly proved and term 'duly proved' means that the safe custody and transmission of a parcel, whereby the items are sent for analysis to the Punjab Forensic Science Agency, is also proved, which in this case the prosecution has not been able to. In this regard, reliance is placed on Mst. Sabiran Bibi v. The State (Crl. P.L.A. No.379/2025), decided on 30.05.2025, wherein the august Supreme Court of Pakistan has observed as under:-

“We have also observed that contraband narcotics allegedly recovered from the petitioner were seized on 19.11.2022; however, the samples were dispatched for chemical analysis to the PFSA on 23.11.2022, after a delay of 4 days for which no explanation, much less plausible, has been furnished by the prosecution. In cases involving recovery of narcotic contraband, the chemical analysis report constitutes the cornerstone of the prosecution's evidence. Such an inordinate delay in forwarding the seized items to PFSA inevitably casts a shadow of doubt on the integrity and authenticity of the samples. In such view of the matter the possibility of tampering, substitution, or contamination of the seized narcotics cannot be excluded.”

The guidance is sought from the binding decision of the august Supreme Court of Pakistan in cases titled “Ahmed Ali and another v. The State” (2023 SCMR 781), wherein the apex Court while referring to Rule 4 of the Control of Narcotic Substances (Government Analysts) Rules, 2001, regarding dispatch of sample for test or analysis, has enunciated as under:-

*“The above provisions make it clear that samples of reasonable quantity have to be drawn at the spot from the narcotic substances and the same have to be dispatched to the nearest Testing Laboratory. **It is important to note that the samples have to be dispatched for analysis at the earliest, but not later than seventy-two hours of the seizure.** Further, the samples have to be dispatched for analysis, either by insured post or through special messenger duly authorized for the purpose, under the cover of a "Test Memorandum" specified in Form-I and the envelope should be sealed and marked as "Secret Drug Sample/Test Memorandum" (emphasis supplied).*

It is a well-established principle of law that when law requires a thing to be done in a particular manner, the same must be done accordingly and if the prescribed procedure is not followed, it would be presumed that the same has not been done in accordance with law.

14. The whole prosecution case is dependent upon the report of the Punjab Forensic Science Agency and reliance upon the same can only be placed in the circumstances when safe transmission of the recovered narcotic substance from the place of recovery to Police Station and from Police Station to Punjab Forensic Science Agency, is proved, however, in this case for the above reasons, statements made by the prosecution witnesses, the said safe transmission of the recovered narcotic substance from the place of recovery to Police Station and from Police Station to Punjab Forensic Science Agency could not be proved. The learned Additional Prosecutor General is unable to explain these discrepancies in the prosecution case. These aspects of the case have convinced us that the whole prosecution case is faulty beyond repair. This portion of the prosecution evidence proves that there are missing links in the chain relating to taking into possession of the case property from the place of occurrence and its submission to the Punjab

Forensic Science Agency and its production before the learned trial court. We have queried the learned Additional Prosecutor General for the State to clarify that what was the evidence available on the record to confirm that the recovered *Charas* had indeed been kept in safe custody but after going through the record of this case from cover to cover, he remained unable to refute that there is no consistent evidence in this regard. In such a state of contradictory evidence available on the record, safe custody of the recovered substance or its sample is not discernable from the record of this case and, thus, we have found it to be extremely unsafe to uphold and maintain the appellant's conviction and sentence recorded by the learned trial Court. In the absence of such evidence, the prosecution, which must establish that the chain of custody of the recovered *Charas* was unbroken, unsuspecting, indubitable, safe and secure, has failed to do so. The break in the chain of custody and lapse in the control of possession of the recovered narcotic substance casts doubts on the safe custody and safe transmission of the articles and impairs and vitiates the conclusiveness and reliability of the report of the Punjab Forensic Science Agency, thus, rendering it incapable of sustaining conviction. To prove the safe custody of the recovered narcotic substances was pivotal for the prosecution, as the entire construct of the Control of Narcotic Substances Act, 1997, and the Control of Narcotic Substances (Government Analysts) Rules, 2001 rested on the report of the Punjab Forensic Science Agency, which in turn rested on the process of sampling and its safe and secure custody. It is impossible for us to determine safe and secure custody of the recovered narcotic substances. In the absence of this certainty, we cannot believe the case of the prosecution as it is. Irreconcilable obscurities have crept into the case of the prosecution which

can be given the benefit to the appellant only. Reliance in this respect is placed on the case of *“Mst. SAKINA RAMZAN versus State”*(2021 SCMR 451) wherein the august Supreme Court of Pakistan has held as under:-

“The chain of custody or safe custody and safe transmission of narcotic drug begins with seizure of the narcotic drug by the law enforcement officer, followed by separation of the representative samples of the seized narcotic drug, storage of the representative samples and the narcotic drug with the law enforcement agency and then dispatch of the representative samples of the narcotic drugs to the office of the chemical examiner for examination and testing. This chain of custody must be safe and secure. This is because, the Report of the Chemical Examiner enjoys critical importance under CNSA and the chain of custody ensures that correct representative samples reach the office of the Chemical Examiner. Any break or gap in the chain of custody i.e., in the safe custody or safe transmission of the narcotic drug or its representative samples makes the Report of the Chemical Examiner unsafe and unreliable for justifying conviction of the accused. The prosecution, therefore, has to establish that the chain of custody has been unbroken and is safe, secure and indisputable in order to be able to place reliance on the Report of the Chemical Examiner.”

Though there is a slight difference by virtue of section 29 of the Control of Narcotic Substances Act, 1997 in the manner and standard of proof in cases registered under the said Act but the prosecution is always bound to discharge the initial onus of proof. This is now a settled principle of law that in every case, the burden to prove the guilt of the accused always lies on the prosecution. Even the slightest doubt results in the failure of the case of the prosecution. Benefit of doubt is not to be granted as a concession but as of right to the accused. The prosecution by mishandling the case has badly failed to bring on record unimpeachable and cogent evidence to prove the culpability of the appellant. In the light of the above noted infirmities, we are inclined to observe that the prosecution has miserably failed to bring home

the guilt of the accused. The prosecution case suffers from inherent defects which are irreconcilable as it is. The guidance is sought from the binding decisions of the august Supreme Court of Pakistan in cases titled *Ikramullah and others Vs. The State* (2015 SCMR 1002), *Akhtar Iqbal Vs. The State* (2015 SCMR 291) and *Muhammad Hussain Vs. The State* (2008 SCMR 345). The august Supreme Court of Pakistan in the case of *Muhammad Mansha Vs. The State* (2018 SCMR 772) has enunciated the following principle:

“Needless to mention that while giving the benefit of doubt to an accused it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of such doubt, not as a matter of grace and concession, but as a matter of right. It is based on the maxim, "it is better that ten guilty persons be acquitted rather than one innocent person be convicted". Reliance in this behalf can be made upon the cases of Tariq Pervez v. The State (1995 SCMR 1345), Ghulam Qadir and 2 others v. The State (2008 SCMR 1221), Muhammad Akram v. The State (2009 SCMR 230) and Muhammad Zaman v. The State (2014 SCMR 749).”

15. For what has been discussed above, we are persuaded to hold that the conviction and sentence recorded by the learned Additional Sessions Judge, Mailsi, *vide* judgment dated 14.06.2024, in the circumstances, are not sustainable. We, thus while **allowing** the instant Criminal Appeal No.571 of 2024, lodged by Muhammad Tanveer alias Tanu son of Umar Din, ***set-aside*** the judgment dated 14.06.2024, passed by the learned Additional Sessions Judge, Mailsi, and acquit the appellant namely Muhammad Tanveer alias Tanu son of Umar Din of the charge leveled against him by extending him the benefit of the doubt. The appellant namely Muhammad Tanveer alias

Tanu son of Umar Din, is ordered to be acquitted. The appellant namely Muhammad Tanveer alias Tanu son of Umar Din, is in custody and he is directed to be released forthwith if not required in any other case.

16. The case property shall be dealt with as directed by the learned trial court. The record of the learned trial court be sent down immediately.

(SADIQ MAHMUD KHURRAM)
JUDGE

(TANVEER AHMAD SHEIKH)
JUDGE

Approved for reporting.

JUDGE

JUDGE

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